E-RATE PURCHASE AGREEMENT

This E-Rate Customer Purchase Agreement (this "Agreement") is entered into on April 1, 2022 ("Effective Date") and is made by and between CDW Government LLC an Illinois limited liability corporation with an office at 230 N. Milwaukee Ave., Vernon Hills, Illinois 60061 ("Seller"), and Vancouver Public Schools, a non-profit school or library eligible for Universal Service funding, as defined below.

E-Rate Contract Number	82421	**Spin #**	143005588
E-Rate Funding Year	**25**	**FCC Registration #**	0012123287
Customer	Vancouver Public Schools 2901 Falk Road Vancouver, WA, 98661	**Seller**	CDW Government LLC 230 N. Milwaukee Avenue Vernon Hills, IL 60061
Effective Date	April 1, 2022	**Quoted Items (see exhibit 1)**	**470#** 220011487

1. DEFINITIONS

As used in the Agreement, the following terms shall have the meanings set forth below:

A. "Universal Service Administrative Co." or "USAC" – The not for profit organization designated by the U.S. Federal Communications Commission ("FCC") to administer and ensure compliance with the Universal Services Fund.
B. "SLP" - The Schools and Libraries Program of the Universal Service Fund, which includes the E-Rate Program and that is administered by USAC under the direction of the FCC.
C. "E-Rate" – The education rate funding program that is a part of SLP that provides discounts to keep students and library patrons connected to broadband and voice services and which is one of the programs that form the Universal Service Program.
D. "Funding Commitment Decision Letter" or "FCDL" – A letter that a Customer receives from USAC which indicates the applicable discount amount for a specific funding year.
E. "Products" – E-Rate eligible products or services that include computer related hardware but are not limited to caching servers, routers, switches, wireless access points, installation, and warranty maintenance and other items which are eligible for E-Rate discounts in accordance with the rules issued by USAC.
F. "Funding Year" – The specific calendar period, as defined by the SLP, during which the Customer is approved for funding or discounts on Products. FY25 is in reference to the program year.

2. TERMS AND CONDITIONS

All orders submitted to Seller by Customer for Products under this Agreement are subject to the terms and conditions of the KCDA Catalog Agreement- Contract# 018-A (018-A) Contract, unless otherwise stated herein in the Agreement.

3. PURCHASE AUTHORIZATIONS

A. E-Rate Status

i. Customer represents and warrants that it qualifies as eligible under the SLP to receive E-Rate funding.

ii. CUSTOMER FURTHER ACKNOWLEDGES AND AGREES THAT THIS AGREEMENT, WHEN EXECUTED, CONSTITUTES A CONTRACT AS REQUIRED BY USAC and the SLP.

B. E-Rate Purchases

i. Customer represents and warrants that all purchases made under this Agreement shall be for its own use and that it is eligible to receive E-Rate funding as specified by USAC.

ii. IN ACCORDANCE WITH FCC REQUIREMENTS, THE CUSTOMER SHALL SUBMIT A COMPLETED AND SIGNED FCC FORM 486 TO USAC The Form 486 shall be approved by USAC prior to order placement with Seller.

4. ORDERING AND ASSISTANCE

A. Ordering

Purchase orders shall be submitted directly to Seller at:

CDW Government LLC
Attn: E-Rate Sales K-12
230 N. Milwaukee Avenue
Vernon Hills, IL 60061
Phone: 800-328-4239
Facsimile: Please fax Purchase Orders to your Account Manager

B. Other Requirements

i. All orders shall include 1) a contact name; 2) phone number; 3) purchase order number; 4) part number; 5) Product description; 6) original and discounted Product price 7) percentage Customer owes and percentage SLP owes (if applicable) 8) ship to location; 9) bill to location; and 10) FRN number for each part number. SEPARATE PURCHASE ORDERS SHALL BE SUBMITTED FOR PRODUCTS THAT ARE NOT ELIGIBLE FOR E-RATE FUNDING. ALL ORDERS SHALL BE SUBJECT TO ACCEPTANCE BY SELLER.

ii. If the Customer is unable to commit the full purchase order amount, any balance remaining that was not funded or approved for payment by USAC will be the responsibility of the Customer. The Customer must add the following language to its purchase order:

"The total cost of this purchase order is $_____. The E-Rate portion is $_____, and is committed by USAC. If there is any issue with the E-Rate portion, Vancouver Public Schools accepts full responsibility for the cost of this purchase, $_____."

C. Assistance with Order

i. Customer may call 1-800-328-4239 to get assistance on any purchase order. Any terms or conditions stated in or on the Customer's purchase order which are inconsistent with or in addition to the terms and conditions in this Agreement or the Product Sales Terms and Conditions shall not be valid, are considered null and void and shall not be applicable to or binding on Seller.

ii. FOR PRODUCTS WHICH ARE DISCONTINUED AFTER A CUSTOMER ORDER HAS BEEN ACCEPTED BY SELLER BUT BEFORE THE PRODUCT HAS SHIPPED, SELLER WILL MAKE REASONABLE EFFORTS TO OFFER A COMPARABLE OR BETTER PRODUCT AT THE SAME OR LESSER PRICE, IF AVAILABLE, UPON SLP'S APPROVAL OF THE PRODUCT SUBSTITUTION.

5. PRICE AND PAYMENT TERMS

i. Payment terms are subject to continuing credit approval by Seller. Seller may change credit or payment terms at any time when, in Seller's opinion, Customer's financial condition, previous payment record, or the nature of Customer's relationship with Seller so warrants.

ii. Seller may discontinue performance under this Agreement (i) if Customer fails to pay any sum when due under this Agreement or any other agreement with Seller until payment is received or (ii) if Customer is in violation of applicable laws and regulations.

A. Price

The Price shall be as set forth on the Customer's quote from Seller and which is in the form attached hereto as Exhibit I. All prices are exclusive of federal, state, local, or other taxes, which shall be the responsibility of the Customer.

B. Payment Terms

i. Customer must choose one of the following payment methods. However, Customers that choose to order Products prior to receiving their FCDL must follow the BEAR payment method.

☐ **Form 474 Service Provider Invoice (SPI) Method**
Seller will invoice the Customer for the Product price, as set forth on the Product quote, net of the FCDL amount. Customer shall be responsible for making payment within thirty (30) days from date of invoice.

☐ **Form 472 Billed Entity Applicant Reimbursement (BEAR) Method**
Seller will invoice Customer, upon Product shipment, for the total purchase price without regard to any SLP funding applied to that purchase price for the Products. Customer shall pay the invoiced amount within thirty (30) days from the date of invoice.

ii. Seller accepts BEAR orders beginning April 1 before the beginning of the Funding Year. Seller accepts SPI orders beginning July 1 of the Funding Year when Customer has received its FCDL. Seller DOES NOT accept SPI orders before July 1 of the Funding Year.

iii. All payments, regardless of method, shall be submitted to "Accounts Receivable" at the Seller's address listed above.

iv. CUSTOMER MAY EITHER WAIT TO PLACE AN ORDER PRIOR TO OR AFTER RECEIPT OF ITS FCDL. IN THE EVENT THAT CUSTOMER PLACES AN ORDER PRIOR TO RECEIPT OF THE FCDL, CUSTOMER SHALL BE RESPONSIBLE FOR PAYMENT OF THE ENTIRE PURCHASE PRICE WITHOUT REGARD TO SLP FUNDING.

6. NON-ASSIGNABILITY AGREEMENT

Customer shall not assign or otherwise transfer its rights or delegate its obligations under this Agreement without Seller's advance written consent. Any attempted assignment, transfer or delegation without such consent shall be void.

i. The term of this Agreement shall commence on April 1, 2022 ("Effective Date") and be valid through the later of the Funding Year 25 or 9/30/2023.

ii. Seller may terminate this Agreement at any time for any reason upon thirty (30) days prior written notice to the Customer.

Customer may terminate this Agreement or withdraw an order upon written notice to Seller if: (a) funds are not appropriated to Customer under this program, or (b) Customer's School Board rejects this Agreement ("Termination Notice"). In the event that Customer terminates this Agreement due to non-appropriation of funds, or termination for convenience, then Seller may immediately cease performance. However, the Customer shall remain liable for any Products that have shipped or services, already provided, or have been subscribed or purchased prior to Seller's receipt of the Termination Notice. Customer shall also be responsible for any of Seller's out-of-pocket costs arising as a result of any such termination.

iii. In the event Customer receives an extension of funding from SLP, Customer will notify Seller in writing and the parties may agree to execute an amendment to extend this Agreement.

7. NOTICES

All notices and other communications required or permitted under this Agreement shall be served in person or sent by U.S. mail, Federal Express, or equivalent carrier to the party's address listed above.

8. GENERAL

If any term or provision herein is determined to be illegal or unenforceable, the validity or enforceability of the remainder of the terms or provisions herein will remain in full force and effect.

9. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between Seller and Customer and supersedes and replaces any and all previous and contemporaneous communications, representations or agreements between the parties, whether oral or written, regarding transactions hereunder. No provision of this Agreement may be waived or modified except by an amendment signed by an authorized representative of each party.

10. GOVERNING LAW

This Agreement will be governed by the laws of WA, without regard to conflicts of law rules. Any litigation will be brought exclusively in a federal or state court located in the state or commonwealth where Customer's location identified above, and the parties consent to the jurisdiction of the federal and state courts located therein, submit to the jurisdiction thereof.. The parties further consent to the exercise of personal jurisdiction.

11. DOCUMENT RETENTION

All documents related to this Agreement will be kept on file by both parties for a period of ten (10) years after the project completion in accordance with the rules of the SLP.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement the day and year first above written.

E-RATE PURCHASE AGREEMENT

CDW Government LLC

_____
(Authorized Signature)

_____
Printed Name

Title: _____

Date: _____

Vancouver Public Schools

_____
(Authorized Signature)

_____
Printed Name

Title: _____

Date: _____

EXHIBIT I
Quote

QUOTE CONFIRMATION

PEOPLE WHO GET IT

DEAR DAVID HURT,

Thank you for considering CDW•G LLC for your computing needs. The details of your quote are below. Click here to convert your quote to an order.

QUOTE #	QUOTE DATE	QUOTE REFERENCE	CUSTOMER #	GRAND TOTAL
MPDF478	1/24/2022	ERATE 2022 EXTREME	6006249	$60,620.31

QUOTE DETAILS

ITEM	QTY	CDW#	UNIT PRICE	EXT. PRICE
Extreme Networks 5420M 48-Port 802.3bt PoE Switch Mfg. Part#: 5420M-48W-4YE Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	10	6328561	$3,964.80	$39,648.00
Extreme Networks ExtremeWorks NBD Advanced Hardware Replacement - extended Mfg. Part#: 97004-5420M-48W-4YE Electronic distribution - NO MEDIA Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	10	6420279	$66.50	$665.00
Extreme Networks power cable Mfg. Part#: 10099 UNSPSC: 26121636 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	20	3533481	$13.00	$260.00
Extreme Networks - power supply - 920 Watt Mfg. Part#: XN-ACPWR-920W Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	20	6313876	$593.60	$11,872.00
Extreme Networks Ethernet 10GBase-CR cable - 3.3 ft Mfg. Part#: 10304 UNSPSC: 26121609 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	5	1948662	$72.50	$362.50
Extreme Networks Ethernet 10GBase-CR cable - 10 ft Mfg. Part#: 10305 UNSPSC: 26121609 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	5	1970189	$99.15	$495.75
Proline Cisco SFP-10G-BX-U Compatible SFP+ TAA Compliant Transceiver - SFP+ Mfg. Part#: SFP-10G-BX-U-PRO UNSPSC: 43201553 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	3	3694925	$428.00	$1,284.00
Proline Cisco SFP-10G-BX-D Compatible SFP+ TAA Compliant Transceiver - SFP+ Mfg. Part#: SFP-10G-BX-D-PRO UNSPSC: 43201553 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	3	3694927	$428.00	$1,284.00

PURCHASER BILLING INFO	SUBTOTAL	$55,871.25

Billing Address: VANCOUVER SCHOOL DIST NO. 37 ACCOUNTS PAYABLE PO BOX 8937 VANCOUVER, WA 98668-8937 **Phone:** (360) 313-1240 **Payment Terms:** ERATE QUOTES ONLY	**SHIPPING**	$0.00
	SALES TAX	$4,749.06
	GRAND TOTAL	**$60,620.31**
DELIVER TO	**Please remit payments to:**	
Shipping Address: VANCOUVER SCHOOL DISTRICT RECEIVING 2419 NE STAPLETON RD VANCOUVER, WA 98661-6539 **Shipping Method:** DROP SHIP-GROUND	CDW Government 75 Remittance Drive Suite 1515 Chicago, IL 60675-1515	

Need Assistance? CDW•G LLC SALES CONTACT INFORMATION

Ashley Bruser | (877) 698-5228 | ashlbru@cdwg.com

This quote is subject to CDW's Terms and Conditions of Sales and Service Projects at
http://www.cdwg.com/content/terms-conditions/product-sales.aspx
For more information, contact a CDW account manager

© 2022 CDW•G LLC 200 N. Milwaukee Avenue, Vernon Hills, IL 60061 | 800.808.4239

QUOTE CONFIRMATION

PEOPLE WHO GET IT

DEAR DAVID HURT,

Thank you for considering CDW•G LLC for your computing needs. The details of your quote are below. Click here to convert your quote to an order.

QUOTE #	QUOTE DATE	QUOTE REFERENCE	CUSTOMER #	GRAND TOTAL
MPPB630	2/3/2022	RUCKUS AND APC 2022	6006249	$36,893.65

QUOTE DETAILS

ITEM	QTY	CDW#	UNIT PRICE	EXT. PRICE
Ruckus T310s - wireless access point Mfg. Part#: 901-T310-US51 UNSPSC: 43223108 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	5	4951873	$773.00	$3,865.00
Ruckus R750 Dual Band Indoor 4x4:4 Access Point Mfg. Part#: 901-R750-US00 UNSPSC: 43223108 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	33	5459501	$740.22	$24,427.26
RUCKUS 1YR SLED PREMIUM AP SUP Mfg. Part#: S41-0001-1LSG Electronic distribution - NO MEDIA Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	38	3629019	$13.82	$525.16
Ruckus SmartZone 100 - Upgrade license - 1 Access Point Mfg. Part#: L09-0001-SG00 UNSPSC: 43233204 Electronic distribution - NO MEDIA Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	38	3616702	$49.63	$1,885.94
APC Smart-UPS X 2000VA Sinewave 4U Rackmount Extended Run, LCD, 120V Mfg. Part#: SMX2000LVNC UNSPSC: 26111701 Contract: KCDA Catalog Agreement- Contract# 018-A (018-A)	2	3073608	$1,650.00	$3,300.00

PURCHASER BILLING INFO

Billing Address:
VANCOUVER SCHOOL DIST NO. 37
ACCOUNTS PAYABLE
PO BOX 8937
VANCOUVER, WA 98668-8937
Phone: (360) 313-1240
Payment Terms: ERATE QUOTES ONLY

DELIVER TO

Shipping Address:
VANCOUVER SCHOOL DISTRICT
RECEIVING
2419 NE STAPLETON RD
VANCOUVER, WA 98661-6539
Shipping Method: Expeditors Deferred 3-5 Days

SUBTOTAL	$34,003.36
SHIPPING	$0.00
SALES TAX	$2,890.29
GRAND TOTAL	**$36,893.65**

Please remit payments to:

CDW Government
75 Remittance Drive
Suite 1515
Chicago, IL 60675-1515

Need Assistance? CDW•G LLC SALES CONTACT INFORMATION					
	Ashley Bruser	|	(877) 698-5228	|	ashlbru@cdwg.com

This quote is subject to CDW's Terms and Conditions of Sales and Service Projects at
http://www.cdwg.com/content/terms-conditions/product-sales.aspx
For more information, contact a CDW account manager

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